

shown that the Warranty reflects an actual agreement with Plaintiff: HMA does not present any evidence to show that Plaintiff signed or accepted or saw or was even informed of the arbitration provision in the Warranty.

HMA argues that equitable estoppel applies, as Plaintiff's claims rely on the Warranty. But an essential element of any contract is mutual assent. (*Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270.) A warranty is not a traditional contract: it is effectively a unilateral promise to the consumer. (*Gavaldon v. DaimlerChrysler Corp.* (2004) 32 Cal.4th 1246, 1258; *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 830 ["A warranty is a contractual promise from the seller that the goods conform to the promise."].) Equitable estoppel thus cannot apply in this context. Nor are Plaintiff's claims clearly dependent upon the Warranty. (See *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1133 [warranty claims arise from a statutory scheme; unless properly disclaimed, every retail sale of consumer goods includes the implied warranty that the goods are merchantable], in addition to any express warranty provided by the manufacturer.) HMA has thus failed to show that equitable estoppel applies here.

As HMA has failed to establish that an enforceable arbitration agreement exists between HMA and Plaintiff, the Motion is **DENIED**.

HMA's Request for Judicial Notice is **GRANTED** under Ev. Code §452(d), as to the existence of the record.

HMA shall file a response by 9/4/26.

Counsel for HMA is to give notice of this ruling.

312	<i>Sierra vs. Della Vedova</i>	Counsel David L. Smart of Smart Law Offices' motions to be relieved as counsel of record for plaintiffs Edward A. Sierra and Sabrina A. Sierra are GRANTED. Counsel has complied with the procedural requirements of California Rules of Court, rule 3.1362. The court finds good cause to grant the relief requested on the merits. The order granting relief is effective upon filing of a proof of service of the signed order on the client. The 8/17/26 OSC is continued to 12/7/26 at 8:45am in Dept. C24. Moving counsel shall give notice.
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